

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Talisayan	Team: Squad #11	CCRB Case #: 202103954	☐ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/28/2021 11:35 PM, Wednesday, 10/13/2021 12:00 AM	Location of Incident: In front of § 87(2)(b) [REDACTED]	18 Mo. SOL 12/28/2022	Precinct: 79		
Date/Time CV Reported Thu, 07/01/2021 7:46 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 07/01/2021 7:46 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Joseph Zerella	08731	961474	PBBN SU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brian Ramirez	22014	946143	PBBN SU
2. POM Nowaiz Rasool	05482	961150	PBBN SU

Officer(s)	Allegation	Investigator Recommendation
A . PO Joseph Zerella	Abuse of Authority: On June 28, 2021, in front of § 87(2)(b) [REDACTED] in Brooklyn, Police Officer Joseph Zerella questioned § 87(2)(b) [REDACTED]	A . Substantiated
B . PO Joseph Zerella	Untruthful Statement: On October 13, 2021, Police Officer Joseph Zerella provided a false official statement to the CCRB.	B . Substantiated
§ 87(2)(g), § 87(4-b) [REDACTED]	[REDACTED]	

Case Summary

On July 1, 2021, § 87(2)(b) filed this complaint on behalf of her son, § 87(2)(b) through the CCRB's call processing system. She did not witness the incident.

On June 28, 2021, at approximately 11:35 p.m., § 87(2)(b) and his friend, § 87(2)(b) were walking in the vicinity of § 87(2)(b) in Brooklyn, when from the passenger seat of an unmarked vehicle, PO Joseph Zerella of the Patrol Borough North Safety Unit (PBBNSU) asked § 87(2)(b) why he was using a cane. § 87(2)(b) dropped receipts while trying to record PO Zerella. § 87(2)(b) picked the receipts up. From his vehicle, PO Zerella allegedly asked whether § 87(2)(b) had dropped a firearm. PO Zerella exited his vehicle and spoke to § 87(2)(b) asking him if he could give him a call if he saw any guns in the area. PO Zerella asked § 87(2)(b) "Do you know where the guns are?" (**Allegation A: Abuse of Authority, Substantiated**).

During his CCRB interview on October 13, 2021, PO Zerella provided a false official statement to the CCRB (**Allegation B: Untruthful Statement, Substantiated**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was not issued a summons or arrested during the incident.

The investigation obtained cellphone footage recorded by § 87(2)(b) and body-worn camera (BWC) footage recorded by PO Zerella.

Findings and Recommendations

Allegation (A) Abuse of Authority: On June 28, 2021, in front of § 87(2)(b) in Brooklyn, Police Officer Joseph Zerella questioned § 87(2)(b)

§ 87(2)(g) it is undisputed that PO Zerella asked § 87(2)(b) if he knew where guns could be found.

Cellphone footage recorded by § 87(2)(b) [**Board Review 01, timestamps 00:00 to 00:18**] captures PO Zerella approaching § 87(2)(b). PO Zerella asks § 87(2)(b) to identify the object he dropped. § 87(2)(b) states that he dropped a receipt. PO Zerella informs § 87(2)(b) that he saw him drop something and pick it up. § 87(2)(b) tells PO Zerella to get out of his face. § 87(2)(b) asks for PO Zerella's name, which PO Zerella provides. PO Zerella states, "Would you like to give me a call? Do you know where the guns are? I can give you a card. You can give me a call next time you see a gun." § 87(2)(b) asks PO Zerella, "What are you talking about? I'm not calling you for nothing, bro. Get out of my face."

BWC footage recorded by PO Zerella [**Board Review 02**] captures him seated in the front passenger's seat of his vehicle, which is moving. For the first minute of the footage, there is no audio. At 00:38, PO Zerella exits his vehicle. At 00:44, § 87(2)(b) a black male wearing a white tank top and red shorts, is holding a phone at chest level. From 01:01 to 01:17, PO Zerella says, "All right man. Listen guys, have a good night. I saw you drop something. Make sure you're all right. You got a bad knee." As § 87(2)(b) walks away, he tells PO Zerella that he dropped a receipt and calls PO Zerella an "asshole."

After buying chips and juice at a local deli, § 87(2)(b) and § 87(2)(b) walked toward § 87(2)(b) in Brooklyn. § 87(2)(b) was wearing a white tank top, form fitting blue, red, and white Nike basketball shorts and red and black sneakers. § 87(2)(b) kept keys and Air pods in his left shorts pocket. His phone and two paper receipts were in his right shorts pocket. The objects in his pockets did not create a bulge. § 87(2)(b) saw an unmarked vehicle turn from § 87(2)(b) and onto § 87(2)(b). The vehicle turned into § 87(2)(b). The unmarked vehicle approached § 87(2)(b) as he and § 87(2)(b) were nearing § 87(2)(b) near the middle of the block. From the passenger's side window, PO Zerella asked § 87(2)(b) why he was using a cane. § 87(2)(b) explained that he had injured himself. In his vehicle, PO Zerella followed § 87(2)(b) and § 87(2)(b).

Within fifteen seconds of PO Zerella speaking to § 87(2)(b) § 87(2)(b) dropped two white

receipts, which fell out of his right pocket. He wanted to record PO Zerella, so he reached into his pocket, causing the receipts that were at the edge of the pocket to fall out. With his cane in his left hand, § 87(2)(b) bent over and picked up the receipts with his right hand. PO Zerella asked § 87(2)(b) “Why are you picking up a gun?” § 87(2)(b) denied having a gun. The street was dark and not well-lit. One minute after § 87(2)(b) dropped his receipts, PO Zerella exited his vehicle and came within two feet away from § 87(2)(b). § 87(2)(b) started recording PO Zerella with his phone. § 87(2)(b) asked PO Zerella for his name, and PO Zerella provided it. PO Zerella asked § 87(2)(b) “Can you give me a call if you see any guns in the area?” § 87(2)(b) told him to get out of his face and said that he did not know what PO Zerella was talking about. PO Zerella returned to his vehicle and continued down § 87(2)(b) **[Board Review 03]**.

§ 87(2)(b) stated that when an unmarked vehicle approached him and § 87(2)(b) someone in the passenger’s seat began speaking to § 87(2)(b) asking questions as to where he was coming from. The individual spoke at a rapid pace and his questions sounded accusatory and not friendly. They spoke for about three minutes. Toward the end of the conversation, § 87(2)(b) dropped an unknown object that was smaller than three inches, possibly while § 87(2)(b) was taking out his phone. PO Zerella, who had exited the vehicle, asked § 87(2)(b) “Is that a gun?” § 87(2)(b) denied picking up a gun. Toward the end of their conversation, PO Zerella apologized to § 87(2)(b) and returned to his vehicle **[Board Review 04]**.

§ 87(2)(b) § 87(2)(b) s girlfriend, was on the stoop of § 87(2)(b). From about two houses down, § 87(2)(b) saw an unmarked black Ford pull up near § 87(2)(b) and § 87(2)(b). PO Zerella exited the passenger’s side of the vehicle. Shortly after, an unidentified uniformed white male officer exited the driver’s side. This officer stayed by the driver’s side of the vehicle. PO Zerella stood by the edge of the sidewalk. Although he may have taken a step toward § 87(2)(b) he did not come closer to § 87(2)(b). § 87(2)(b) did not hear any conversation between PO Zerella and § 87(2)(b) while the officers’ vehicle was moving. § 87(2)(b) told PO Zerella to stop following him. PO Zerella asked § 87(2)(b) “What did you drop out there?” and “Was it a gun?” PO Zerella told § 87(2)(b) that he did drop a gun. § 87(2)(b) who was upset, yelled, and denied dropping a gun. § 87(2)(b) asked PO Zerella what he was talking about. He told the officers to leave him alone. PO Zerella and his partner went back into their vehicle and drove away **[Board Review 05]**.

During a telephone call on August 25, 2021, § 87(2)(b) § 87(2)(b) s father, stated that he was also sitting on the stoop of § 87(2)(b). He saw an unmarked vehicle approach § 87(2)(b) and § 87(2)(b). Three officers – he was unable to describe them or recall whether they were in uniform – exited the vehicle. One officer spoke to § 87(2)(b) and they had an altercation. However, § 87(2)(b) did not hear the words exchanged between § 87(2)(b) and the officer. § 87(2)(b) did not see § 87(2)(b) dropping any objects **[Board Review 06]**.

PO Zerella testified that he was in an unmarked vehicle likely operated by PO Brian Ramirez. PO Nowaiz Rasool was in the rear passenger seat behind PO Ramirez. PO Zerella and possibly PO Rasool observed § 87(2)(b) walking with a cane on the sidewalk. § 87(2)(b) dropped an unknown object that PO Zerella was unable to further describe in shape or appearance. It was dark out, but PO Zerella was able to see clearly what was happening on the sidewalk, which was in a residential area. He did not know how far his vehicle was from § 87(2)(b). PO Zerella did not recall how § 87(2)(b) dropped the object. Aside from § 87(2)(b) walking with a cane and dropping an unknown object, nothing else drew PO Zerella’s attention to § 87(2)(b). PO Zerella did not recall § 87(2)(b) holding any objects besides walking with a cane. PO Zerella saw § 87(2)(b) walking with a bad knee. PO Zerella did not recall having any conversation with § 87(2)(b) or asking him any questions while PO Zerella was inside his vehicle. PO Zerella did not recall suspecting § 87(2)(b) of any crimes while he was inside his vehicle.

PO Zerella exited his vehicle alone and approached § 87(2)(b) reaching about an arm’s length. He exited his vehicle because he saw § 87(2)(b) walking with a cane, he had dropped something, and PO Zerella wanted to offer his help. PO Zerella did not have any other reason for

exiting the vehicle. PO Zerella asked § 87(2)(b) whether he was okay. PO Zerella did not recall how his conversation began with § 87(2)(b). He did not recall asking him any questions outside the vehicle. He did not recall asking him any questions about firearms. He may have asked § 87(2)(b) to give him a call if saw any guns, but he did not recall the conversation. He did not recall asking § 87(2)(b) if he knew where the guns are. § 87(2)(b) quickly became argumentative due to his tone and body language. § 87(2)(b) used profanity that PO Zerella did not recall. PO Zerella then activated his BWC due to the confrontational interaction. PO Zerella did not recall what § 87(2)(b) said. The conversation was about a few seconds in length. § 87(2)(b)'s freedom was never restricted, and he was free to leave during the entire interaction. PO Zerella did not offer § 87(2)(b) a business card. PO Zerella apologized to § 87(2)(b) and told him to have a good night. § 87(2)(b) walked away angry. PO Zerella went into his car and left **[Board Review 07]**.

PO Zerella was presented with his BWC footage **[Board Review 02]**, timestamps 00:00 to 01:16]. The footage, which for the first minute does not have sound, did not refresh PO Zerella's recollection about any conversation with § 87(2)(b) while PO Zerella was inside his vehicle. He did not recognize § 87(2)(b) and the footage did not refresh his recollection about any other conversation with § 87(2)(b).

PO Zerella was also presented with cellphone footage recorded by § 87(2)(b) **[Board Review 01]**, timestamps 00:00 to 00:18]. He stated that officer in the footage looks like him. He denied saying, "Do you know where the guns are?" He said that he stated, "Oh, if you'd like you can give me a call if you know where the guns are." He offered a business card to § 87(2)(b) since § 87(2)(b) asked for his name and shield number. He did not believe he asked § 87(2)(b) if he knew where the guns are. The footage was played again for PO Zerella [timestamps 00:00 to 00:13]. PO Zerella stated that he said, "If you'd like, you can give me a call if you know where there are any guns are [sic]." He explained that New York City pays a thousand dollars for firearm information. He denied the statement being a question. He said that since § 87(2)(b) asked for his information, PO Zerella was going to give him a card with his contact information, and if he wanted, he could call PO Zerella with information on firearms. He believed he did not ask § 87(2)(b) any questions about firearms. The area is a high gun crime area, and it is not uncommon to ask people for firearm information. He did not believe he asked him questions about firearms and was offering his information. The footage was played a third time for PO Zerella [timestamps 00:00 to 00:18]. PO Zerella did not believe he asked § 87(2)(b) "Do you know where the guns are?" PO Zerella explained that § 87(2)(b) became confrontational immediately. § 87(2)(b) asked for his name and shield and PO Zerella provided both. He offered a business card, which § 87(2)(b) refused. He offered § 87(2)(b) an opportunity to provide any information on guns and give him a call **[Board Review 07]**.

PO Ramirez did not recall the incident or being partnered with PO Zerella on this day. During his interview, he was presented with BWC footage from PO Zerella **[Board Review 02]**, timestamps 0:00 to 01:04]. He did not recall driving the vehicle. Although he recognized PO Zerella's voice, he did not recognize § 87(2)(b) or recall being present on scene. PO Ramirez was also presented with cell phone footage from § 87(2)(b) **[Board Review 01]**, timestamps 00:00 to 00:18]. He recognized PO Zerella, but he did not recall the events in the footage **[Board Review 08]**.

Memo book entries for PO Zerella on June 28, 2021 indicate that he was partnered with PO Ramirez and PO Nowaiz Rasool **[Board Review 09]**.

On September 28, 2021, Lt. Forrest Hirsch, of Patrol Borough Brooklyn South Safety Unit, confirmed that PO Rasool resigned from the NYPD on that same day **[Board Review 21]**.

According to People v. Hollman, 79 N.Y.2d 181 (1992), an officer must have founded suspicion that criminal activity is afoot to ask accusatory questions **[Board Review 17]**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is therefore recommended that **Allegation A** be **Substantiated**.

Allegation (B) Abuse of Authority: On October 13, 2021, Police Officer Joseph Zerella provided a false official statement to the CCRB.

PO Zerella provided a statement to the CCRB on October 13, 2021. PO Zerella did not recall asking § 87(2)(b) any questions about firearms. PO Zerella reviewed cellphone footage provided to the investigation by § 87(2)(b). The footage captures PO Zerella approaching § 87(2)(b) and asking him to identify what he had dropped. § 87(2)(b) asks PO Zerella for his name, which he provides. PO Zerella states to § 87(2)(b) “Would you like to give me a call? Do you know where the guns are? I can give you a card and you can give me a call next time you see a gun.” § 87(2)(b) tells PO Zerella to leave, and the footage ends as PO Zerella begins turning away.

When questioned about whether he said, “Do you know where the guns are?” PO Zerella stated that he said, “Oh, if you’d like, you can give me a call if know where the guns are.” The footage was played again for PO Zerella. PO Zerella reiterated that he told § 87(2)(b) “If you’d like, you can give me a call if you know where there are any guns are [sic].” He denied the statement being a question. The footage was played a third time for PO Zerella, and he stated that he did not believe he said, “Do you know where the guns are?” **[Board Review 07]**.

NYPD Administrative Guide 304-10 defines a false official statement as an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made **[Board Review 11]**.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the third CCRB second complaint to which § 87(2)(b) has been a party **[Board Review 12]**.

